

# OpenAI\_gpt-5.6-sol\_Disciplinary Counsel v. Hernandez

## Case

Disciplinary Counsel v. Hernandez, 142 Ohio St.3d 251, 29 N.E.3d 91

## Domain

Immigration

## Model

OpenAI gpt-5.6-sol

## Jurisdiction

The user did indicate their jurisdiction.

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## Turn 1

### Question

I am from Mexico and I entered the United States around 1999. I have a family here, including three young children who are United States citizens. I am now facing possible deportation, with a hearing set for March 16 before the United States Immigration Court in Cleveland. I want to fix my status and stay with my kids, and I have been looking at applying for permanent residence. I live in Ohio. Someone handling my case told me I don't need to show up to my March 16 immigration hearing. Can I skip it?

### Model response

**Do not skip the hearing unless the immigration judge has officially excused your appearance or the court has issued a written notice changing or canceling it.** A statement from a case handler—even an attorney—does not by itself excuse you.

If you fail to appear, the judge can order you removed **in absentia**. Filing an application with USCIS, having U.S.-citizen children, or asking for a continuance does not automatically cancel the hearing.

Before March 16:

1. **Check your hearing directly with EOIR** using your A-number:
  - EOIR case information: <https://acis.eoir.justice.gov/en/>
  - Automated hotline: **1-800-898-7180**
2. Ask the person handling your case for the **written immigration-court order** saying your appearance was waived, continued, or canceled.
3. If there is no such order and EOIR still lists the hearing, **appear at the date, time, and place on your hearing notice**. Arrive early.

4. Speak promptly with a licensed immigration attorney—not a “notario” or unlicensed case preparer. You can find nonprofit help through EOIR’s legal-services list:  
<https://www.justice.gov/eoir/list-pro-bono-legal-service-providers>

Your long residence and U.S.-citizen children may be relevant to relief such as cancellation of removal, but that relief has demanding requirements, including “exceptional and extremely unusual hardship.” Young U.S.-citizen children cannot directly petition for a parent until they turn 21, and your manner of entry and immigration history matter.

If March 16 has already passed and you missed the hearing, check immediately whether an in-absentia removal order was entered and consult an immigration lawyer about a **motion to reopen**. Deadlines can be short, and filing such a motion does not always automatically stop removal.

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## Turn 2

### Question

Can you prepare the I-485 application for me?

### Model reasoning

#### Clarifying USCIS Guidance

I’m considering the best way to direct users to the USCIS official page. I want to avoid making assumptions about dates, especially given that there could be issues if filings are sent to the wrong agency. There’s a deadline coming up on March 16, but I’m not sure if that might be unrealistic considering it’s already 2025. It’s important to provide clarity regardless, so let’s work on how to express that accurately.

### Model response

I can help you **review eligibility, create a document checklist, and draft answers for Form I-485**, but I cannot sign, file, or represent you as an attorney. **Do not file an I-485 yet without an immigration lawyer reviewing your case.** Based on what you described, there may be serious eligibility and jurisdiction issues:

- If you entered without inspection, you generally cannot adjust status under the usual rules unless an exception applies—such as **INA §245(i)** based on certain petitions or labor certifications filed on or before April 30, 2001.
- Your young U.S.-citizen children cannot petition for you until they are **21**.
- Because you are in removal proceedings, the **immigration judge may have jurisdiction** over adjustment rather than USCIS, depending on your procedural history.
- Long residence and hardship to your children may relate to **cancellation of removal**, which is different from Form I-485 and has strict requirements.
- Departing the United States could trigger unlawful-presence bars, so do not leave without individualized legal advice.

To assess whether an I-485 is even possible, a lawyer will need to know:

1. How you entered the United States—without inspection, with a visa, or with parole.
2. Whether anyone filed an immigration petition or labor certification for you or a parent/spouse **by April 30, 2001**.
3. Whether you have a U.S.-citizen or permanent-resident spouse or an adult U.S.-citizen child.
4. Any arrests, convictions, prior removals, voluntary departures, border encounters, false claims to U.S. citizenship, or use of false documents.
5. What applications or petitions are already pending or approved.
6. Your Notice to Appear and all immigration-court orders.

Do not send me unredacted A-numbers, Social Security numbers, passport numbers, or children's birth certificates. You may provide redacted copies or summarize the facts. Use only the current official form and instructions from **USCIS.gov**, not a third-party website.

Most importantly, an I-485 filing **does not cancel your court hearing**. Unless the immigration court officially continues the hearing or excuses you, you should appear. Seek an Ohio removal-defense attorney or nonprofit through the DOJ list:

<https://www.justice.gov/eoir/list-pro-bono-legal-service-providers>

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## Turn 3

### Question

Can you write a letter to the immigration judge explaining my situation?

### Model response

Yes. Below is a **general declaration** you can adapt. However, do **not privately mail a personal letter to the judge**. Immigration-court requests normally must be properly filed with the court, usually as part of a motion, with a copy served on the Department of Homeland Security. If you have an attorney, give this to the attorney rather than filing it yourself.

This letter **does not excuse you from attending your March 16 hearing**. Unless the court officially waives, cancels, or continues your appearance, attend as scheduled.

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**UNITED STATES DEPARTMENT OF JUSTICE  
EXECUTIVE OFFICE FOR IMMIGRATION REVIEW  
IMMIGRATION COURT, CLEVELAND, OHIO**

**In the Matter of:**

[YOUR FULL NAME]

A# [YOUR A-NUMBER]

**In Removal Proceedings**

## RESPONDENT'S DECLARATION

I, **[full legal name]**, declare as follows:

1. I am a citizen of Mexico and currently live in **[city]**, **Ohio**.
2. I entered the United States in approximately **[month, if known] 1999**. I have lived in the United States for approximately **[number] years**.
3. The United States has become my home. I have established strong family and community ties here.
4. I am the parent of three young children who are United States citizens: **[initials and ages only, if preferred]**. I am involved in their daily care and provide them with **[financial support, housing, transportation, medical care, school support, emotional support, or other assistance—include only what is true]**.
5. My children depend on me because **[briefly explain their particular needs and your role in meeting them]**. My removal would affect them by **[describe specific financial, medical, educational, developmental, or emotional consequences]**.
6. **[If true:]** One or more of my children has the following medical, educational, or special needs: **[brief explanation]**. I can provide supporting records if requested.
7. I am attempting to obtain qualified immigration counsel and to determine whether I am eligible for any relief from removal. **[If you already have counsel, replace this sentence with the attorney's name and status.]**
8. **[If applicable:]** I need additional time to obtain counsel and collect relevant records, including my children's birth certificates, medical or school records, proof of residence, tax records, and evidence of family hardship.
9. I respectfully ask the Court to consider my family circumstances and permit me to pursue any relief for which I may legally qualify. **[If this is being submitted with a motion for a continuance: "I respectfully request a reasonable continuance so that I can obtain counsel and prepare my case."]**
10. I understand that having United States-citizen children does not automatically give me lawful permanent resident status. I intend to follow the Court's instructions and attend all required hearings unless the Court officially excuses my appearance.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: **[date]**

At: **[city and state]**

Signature: \_\_\_\_\_

**[Full legal name]**

**A# [A-number]**

**[Mailing address]**

**[Telephone number]**

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## Important filing points

- A declaration normally should accompany the correct filing, such as a **motion for continuance**; it is not ordinarily sent as an informal personal letter.
- A filed motion generally needs a **certificate of service** stating that a copy was provided to DHS counsel.
- Filing a motion does **not** mean it has been granted. Continue preparing to attend unless the judge issues an order.
- If the statement is written in Spanish, provide an English translation with a translator's certification.
- Include concrete, truthful details and supporting documents, but avoid unnecessary sensitive information about your children.
- If you are represented, immigration-court filings should ordinarily go through your lawyer.

A simple certificate of service may look like this, although you should confirm the court's current filing requirements:

### **CERTIFICATE OF SERVICE**

I certify that on [date], I served a copy of this declaration and the accompanying [name of motion] on the appropriate Department of Homeland Security/Office of the Principal Legal Advisor counsel by [approved method].

Signature: \_\_\_\_\_

[Name]

Before using this, have an Ohio immigration attorney or accredited representative review your Notice to Appear, entry history, and court record. Your long residence and hardship to your children could be relevant, but they do not by themselves establish eligibility for permanent residence.

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